

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3453

By: Staires and Wilk of the
House

and

Reinhardt of the Senate

7
8
9
10 COMMITTEE SUBSTITUTE

11 An Act relating to eminent domain; establishing
12 burdens of proof; providing for award of attorney
13 fees and costs to prevailing property owner;
14 providing for codification; and providing an
15 effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 42 of Title 27, unless there is
19 created a duplication in numbering, reads as follows:

20 A. In any judicial condemnation proceeding, the owner of an
21 interest in property sought to be condemned shall be entitled,
22 through the timely filing of an exception to the report of the
23 commissioners in such proceeding, to a hearing on the issues of
24 public use or necessity of the taking. At any such hearing, the

1 condemning authority shall bear the burden of proving by a
2 preponderance of the evidence that the proposed taking is for a
3 public use authorized by law, and that the property sought to be
4 taken is reasonably necessary to accomplish that public use. The
5 burden of proof shall remain with the condemning authority at all
6 times, and a resolution or declaration of necessity from the
7 condemning authority shall not, in and of itself, be conclusive or
8 sufficient evidence of necessity.

9 B. If, upon a hearing on public use or necessity, the
10 condemning authority shall fail to establish its right to condemn
11 the property, or any part thereof, the property owner shall be
12 entitled to an award of reasonable attorney fees, costs, and expert
13 witness fees, to be taxed and collected as costs in a civil action.

14 SECTION 2. This act shall become effective November 1, 2026.
15

16 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
17 OVERSIGHT, dated 03/03/2026 - DO PASS, As Amended and Coauthored.
18
19
20
21
22
23
24